

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

Index No:

-----X
ANTHONY ALSTON and MICHAEL THOMAS,

Plaintiffs,

Plaintiffs designate
KINGS COUNTY
as the place of trial

-against-

The basis of the venue is:
Place where the cause of
action arose

SUMMONS

POLICE OFFICER DANIEL PALMINTERI
(Shield # 21071) and POLICE OFFICER ETHAN
COOLEY (Shield # 24949),

Defendants.

-----X
To the above named defendant(s):

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's Attorney within twenty days after the service of this summons, exclusive of the day of service (or within thirty (30) days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear, judgment will be taken against you by default for the relief demanded in the complaint set forth below.

Dated: Brooklyn, New York
September 21, 2020

Yours, etc.

LAW OFFICES OF WALE MOSAKU, P.C.

BY: WALE MOSAKU
Attorney for the Plaintiffs
25 Bond Street, 3rd Floor
Brooklyn, New York 11201
(718) 243-0994

Defendants' addresses:

PO Daniel Palminteri (Shield # 21071)
NYPD 79th Police Precinct
263 Tompkins Avenue
Brooklyn, NY 11216

PO Ethan Cooley (Shield # 24949)
NYPD 79th Police Precinct
263 Tompkins Avenue
Brooklyn, NY 11216

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

Index No:

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ANTHONY ALSTON and MICHAEL THOMAS,

Plaintiffs,

-against-

COMPLAINT

POLICE OFFICER DANIEL PALMINTERI
(Shield # 21071) and POLICE OFFICER ETHAN
COOLEY (Shield # 24949),

Defendants.

-----X
ANTHONY ALSTON and MICHAEL THOMAS (hereinafter "plaintiffs"), by their attorney(s) THE LAW OFFICES OF WALE MOSAKU, P.C., complaining of the defendants POLICE OFFICER DANIEL PALMINTERI (Shield # 21071) and POLICE OFFICER ETHAN COOLEY (Shield # 24949) (hereinafter collectively referred to as "defendant officers"), upon information and well founded belief, alleges as follows:

NATURE OF THE ACTION

1. This is an action at law to redress the deprivation of rights secured to each plaintiff under color of statute, ordinance, regulation, custom; and/or to redress the deprivation of rights, privileges, and immunities secured to each plaintiff by the Fourth, Fifth, Sixth and Fourteenth Amendments to the Constitution of the United States; and by Title 42 U.S.C. §§ 1982, 1983 and 1985; and arising under the laws and statutes of the City and/or State of New York.

THE PARTIES

2. The plaintiff ANTHONY ALSTON is a resident of the City of New York, who resides in Kings County, City and State of New York. Plaintiff ANTHONY ALSTON is an African-American male of full age.
3. The plaintiff MICHAEL THOMAS is a resident of the City of New York, who resides in Kings County, City and State of New York.

Plaintiff MICHAEL THOMAS is an African-American male of full age.

4. At all relevant times the defendant officers were, and upon information and well founded belief, still are law enforcement officers in the employ of the police department of the City of New York (hereinafter "NYPD").
5. At all times herein, POLICE OFFICER DANIEL PALMINTERI (Shield # 21071) and POLICE OFFICER ETHAN COOLEY (Shield # 24949) were employed as law enforcement officers of the City of New York, State of New York, were acting under the color of their official capacity, and their acts were performed under color of the statutes and ordinances of the City of New York and/or the State of New York.

FACTUAL ALLEGATIONS

6. On or about September 26, 2019, at approximately 11:00 a.m., on Gates Avenue between Throop Avenue and Tompkins Avenue ("subject location") each plaintiff was unlawfully and wrongfully arrested by the defendant officers.
7. Prior to the arrest, the plaintiffs had just attended a funeral, and were leaving from the funeral in the plaintiff Michael Thomas's vehicle. At the time, the plaintiff Michael Thomas was operating his vehicle.
8. As the plaintiff Michael Thomas was operating his vehicle as described, he was pulled over by the defendant officers, who claimed at the time that he had made an illegal u-turn. In fact, the plaintiff Michael Thomas had not made an illegal u-turn prior to being stopped by the defendant officers.
9. Upon being stopped, the defendant officers then unlawfully and illegally ordered the plaintiffs out of the plaintiff Michael Thomas's vehicle, and unlawfully and illegally searched said vehicle, as well as person(s) of the plaintiffs.

10. The defendant officers then claimed that they had recovered firearms, one from within the plaintiff Michael Thomas's vehicle, and another from the person of the plaintiff Anthony Alston.
11. The defendant officers then arrested the plaintiffs, and subsequently caused them to be prosecuted.
12. The plaintiff Michael Thomas was eventually arraigned before a Kings County Criminal Court Judge on the following charges:
 - a. Criminal Possession of a Weapon in the Second Degree [P.L. 265.03(3)];
 - b. Criminal Possession of a Weapon in the Third Degree [P.L. 265.02(1)];
 - c. Criminal Possession of a Weapon in the Fourth Degree [P.L. 265.01(1)];
 - d. Criminal Possession of a Firearm [P.L. 265.01-B(1)]; and
 - e. Making a U-Turn where Prohibited [VTL 1161].
13. The plaintiff Anthony Alston was eventually arraigned before a Kings County Criminal Court Judge on the following charges:
 - a. Criminal Possession of a Weapon in the Second Degree [P.L. 265.03(3)];
 - b. Criminal Possession of a Weapon in the Fourth Degree [P.L. 265.01(1)]; and
 - c. Criminal Possession of a Firearm [P.L. 265.01-B(1)].
14. Defendant Palminteri signed off on the criminal complaints against each plaintiff, wherein he alleged, *inter alia*, that he had been informed by defendant Cooley, that Cooley had recovered a loaded firearm from underneath the driver's seat of the plaintiff Thomas' vehicle.
15. Upon arraignment each plaintiff pleaded "*not guilty*".
16. The plaintiff Michael Thomas was released from custody at approximately 03:00 p.m. on September 27, 2019. The plaintiff

Anthony Alston was released from custody at approximately 04:00 a.m. on September 28, 2019.

17. The criminal charges against each plaintiff were dismissed on November 25, 2019, upon the motion of the Kings County District Attorney.
18. The plaintiff Anthony Alston's Docket number was "CR-035521-19KN". The plaintiff Michael Thomas's Docket number was "CR-035522-19KN".

CAUSE OF ACTION: UNLAWFUL SEARCH UNDER 42 U.S.C § 1983

19. By this reference, each plaintiff incorporates each and every allegation and averment set forth in paragraphs 1 through 18 of this complaint as though fully set forth herein.
20. That the defendant officers searched, or caused each plaintiff and/or his property/person to be searched without any individualized reasonable suspicion that he was concealing weapons or contraband.
21. As a result of the foregoing, each plaintiff and/or his property/person was/were subjected to an illegal and improper search.
22. The foregoing unlawful search violated each plaintiff's constitutional right to privacy, as guaranteed by the Fourth, Fifth, Sixth and Fourteenth Amendments to the United States Constitution.
23. Consequently, each plaintiff has been damaged and hereby demands compensatory and punitive damages in an amount to be proven at trial against each of the defendant.

CAUSE OF ACTION ON BEHALF OF EACH PLAINTIFF: FALSE ARREST AND FALSE IMPRISONMENT UNDER 42 U.S.C § 1983/NEW YORK STATE LAW

24. By this reference, each plaintiff incorporates each and every allegation and averment set forth in paragraphs 1 through 23 of this complaint as though fully set forth herein.
25. The above-described respective arrest, detention and imprisonment of each plaintiff was/were without just or probable cause and without

any warrant or legal process directing or authorizing each plaintiff's arrest or subsequent detention.

26. As a result of each plaintiff's above-described false arrest and detention, he has been caused to suffer humiliation, great mental and physical anguish, embarrassment and scorn among those who know him, was prevented from attending to his necessary affairs, and has been caused to incur legal expenses, and has been otherwise damaged in his character and reputation.
27. Consequently, each plaintiff has been damaged and hereby demands compensatory and punitive damages in an amount to be proven at trial against the defendant officers, individually and severally.

CAUSE OF ACTION ON BEHALF OF PLAINTIFFS:
MALICIOUS PROSECUTION UNDER 42 U.S.C § 1983/NEW
YORK STATE LAW

28. The commencement and continued prosecution of the criminal judicial proceeding(s) against plaintiffs, including their arrest(s), their imprisonment(s), and the charges against said plaintiffs were committed by or at the insistence of the defendant officers, was without probable cause or legal justification, and with malice.
29. That the defendants were directly involved in the initiation of criminal proceedings against plaintiffs.
30. That the defendants lacked probable cause to initiate criminal proceedings against plaintiffs.
31. That the defendants acted with malice in initiating criminal proceedings against plaintiffs.
32. That the were directly involved in the continuation of criminal proceedings against the plaintiffs.
33. That the defendants lacked probable cause in continuing criminal proceedings against plaintiffs.
34. That the defendants acted with malice in continuing criminal proceedings against plaintiffs.

35. That the defendants misrepresented and falsified evidence throughout all phases of the criminal proceedings.
36. That the defendants misrepresented and falsified evidence to the prosecutors in the Kings County District Attorney's ("KCDA") office.
37. That the defendants withheld exculpatory evidence from the prosecutors in the KCDA's office.
38. That the defendants did not make a complete statement of facts to the prosecutors in the KCDA's office.
39. The criminal charges against each plaintiff were dismissed on November 25, 2019, upon the motion of the Kings County District Attorney, and terminated in their favor.
40. The arrest, imprisonment and prosecution of the plaintiffs by the defendants was/were malicious and unlawful, because the plaintiffs had committed no crime and there was no probable cause to believe that said plaintiffs had committed any crimes.
41. The defendants actions were intentional, unwarranted and in violation of the law.
42. The defendants had full knowledge that the charges made before the Court against said plaintiffs were false and untrue.
43. As a consequence of the malicious prosecution by the defendants, the plaintiffs each suffered a significant loss of liberty, humiliation, mental anguish, depression and his constitutional rights were violated.
44. The plaintiffs each hereby demands compensatory damages from defendants, in an amount to be determined at trial, against the City of New York.
45. This action falls within one or more of the exceptions of the New York State Civil Practice Law and Rules §1602.

CAUSE OF ACTION ON BEHALF OF EACH PLAINTIFF: DENIAL OF A
CONSTITUTIONAL RIGHT TO A FAIR TRIAL UNDER 42 U.S.C § 1983 DUE TO
THE FABRICATION OF EVIDENCE

46. By this reference, each plaintiff incorporates each and every allegation and averment set forth in paragraphs 1 through 45 of this complaint as though fully set forth herein.
47. Each defendant, in his capacity as an “investigating officer” fabricated evidence against each plaintiff.
48. The evidence that each defendant fabricated against each plaintiff was likely to influence a jury’s decision.
49. Each defendant forwarded the fabricated evidence concerning each plaintiff to the prosecutors in the KCDA’s office.
50. That each plaintiff was suffered a deprivation of his liberty as a result of the above-referenced actions of each defendant officer.
51. By creating fabricated evidence against each plaintiff; and forwarding said fabricated evidence to prosecutors which directly resulted in each plaintiff being deprived of his/her liberty, each defendant violated each plaintiff’s constitutional right to a fair trial under the Due Process Clause of the Fourth, Fifth, Sixth and Fourteenth Amendments to the United States Constitution.
52. As a consequence of each defendant's actions, each plaintiff suffered loss of liberty, humiliation, mental anguish, depression, and his constitutional rights were violated.
53. Each plaintiff hereby demands compensatory damages and punitive damages, in an amount to be determined at trial, against the defendants, individually and severally.

CAUSE OF ACTION ON BEHALF OF EACH PLAINTIFF: FAILURE TO
INTERVENE UNDER 42 U.S.C § 1983

54. By this reference, the plaintiff incorporates each and every allegation and averment set forth in paragraphs 1 through 53 of this complaint as though fully set forth herein.
55. Each defendant officer had an affirmative duty to intervene on each plaintiff’s behalf to prevent the violation to his constitutional rights, as more fully set forth above.

56. Each defendant officer failed to intervene on each plaintiff's behalf to prevent the violation of his constitutional rights, despite having had a realistic and reasonable opportunity to do so.
57. As a consequence of each defendant officer's actions, each plaintiff suffered loss of liberty, humiliation, mental anguish, depression, and his/her constitutional rights were violated.
58. Thus each plaintiff hereby demands compensatory damages and punitive damages, in the amount of to be determined at trial, against each defendant officer.

WHEREFORE, each plaintiff prays for judgment against each defendant officer, as follows: for compensatory damages in an amount to be proven at trial; for exemplary and punitive damages in an amount to be proven at trial; for costs and expenses of suit herein, including each plaintiff's reasonable attorney's fees; for pre-judgment and post-judgment interest; all in a sum of money that exceeds the jurisdiction of all lower Courts, and for such other and further relief as this court deems just and appropriate.

Dated: Brooklyn, New York
September 21, 2020

LAW OFFICES OF WALE MOSAKU, P.C.

By:

Wale Mosaku
Attorney for the Plaintiffs
25 Bond Street, 3rd Floor
Brooklyn, N.Y. 11201
(718) 243-0994

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

Index No:

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ANTHONY ALSTON and MICHAEL THOMAS,

Plaintiffs,

-against-

ATTORNEY
CERTIFICATION
PURSUANT TO 22 NYCRR
Part 130-1.1(c)

POLICE OFFICER DANIEL PALMINTERI
(Shield # 21071) and POLICE OFFICER ETHAN
COOLEY (Shield # 24949),

Defendants.

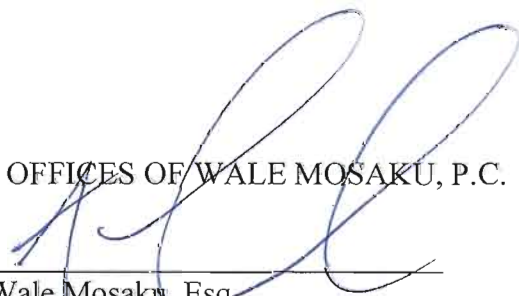
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The undersigned attorney does hereby certify:

That I am the attorney for the plaintiffs and duly admitted to practice law before the
Courts of the State of New York. I do hereby provide this signed certification pursuant to
22 NYCRR Part 130-1.1 (c), that the papers that I have served, filed or submitted to the
Court in this action are not frivolous.

Dated: Brooklyn, New York
January 8, 2020

LAW OFFICES OF WALE MOSAKU, P.C.



BY: Wale Mosaku, Esq.
Attorney(s) for Plaintiffs
25 Bond Street, 3rd Floor
Brooklyn, New York 11201
(718) 243-0994

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS Index #:

ANTHONY ALSTON and MICHAEL THOMAS,

Plaintiffs,

-against-

POLICE OFFICER DANIEL PALMINTERI
(Shield # 21071) and POLICE OFFICER ETHAN
COOLEY (Shield # 24949),

Defendants.

SUMMONS AND COMPLAINT

LAW OFFICES OF WALE MOSAKU, P.C.
Attorney(s) for Plaintiff(s)
25 Bond Street, 3rd Floor
Brooklyn, New York 11201
(718) 243-0994

To:

Service of a copy of the within
is hereby admitted.

Dated:..... 202_

Attorneys for Defendant(s)
